

tortious conduct aimed to injure the interests of nonsettling defendants.” (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499.)

However, a party objecting that a settlement lacks good faith has the burden of proving the issue. (Code Civ. Proc. § 877.6.) Therefore, “when no one objects, the barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” (*City of Grand Terrace v. Super. Ct.* (1987) 192 Cal.App.3d 1251, 1261.) In such case, the trial court is not required “to consider and weigh the *Tech-Bilt* factors.” (*Ibid.*)

The present motion is unopposed. The Court finds that it sets forth the ground of good faith and is accompanied by declarations sufficient to set forth a brief background of the case. On this basis, the Court finds that the settlement entered into between Plaintiffs and moving Defendant is a settlement in good faith pursuant to Code of Civil Procedure Section 877.6. (*City of Grand Terrace v. Super. Ct., supra*, 192 Cal.App.3d at 1261.)

****at 9:30 a.m.****

San Giorgio Ventures, LLC v. County of Napa

24CV001787

[1] MERITS DETERMINATION HEARING

[2] MOTION FOR JUDGMENT

APPEARANCE REQUIRED. Because of scheduling conflicts the Court will be unable to hear the matter. However, the parties are directed to appear in order to set the matter for continued hearing.

****at 9:30 a.m.****

Caroline Geitner v. Tia Sonesouphab et al

24CV002118

DEFENDANTS ST. JOSEPH HEALTH NORTHERN CALIFORNIA, LLC D/B/A PROVIDENCE QUEEN OF THE VALLEY MEDICAL CENTER, PROVIDENCE ST. JOSEPH HEALTH, PROVIDENCE HEALTH & SERVICES, AND TIA SONESOUPHAB’S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

TENTATIVE RULING: The matter is CONTINUED to October 16, 2025, at 9:30 a.m. in Dept. A. Plaintiff Caroline Geitner is granted leave to serve and file, no later than October 2, 2026, another separate statement consistent with the discussion, below.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies

forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A party opposing a motion for summary judgment is required to file a separate statement in opposition to the moving party's motion. (See Cal. Rules of Court, rule 3.1350, subd. (e)(2).) That statement must be in a specific form and include specific content. (See *Id.* at subd. (f).) "If the opposing party contends that additional material facts are pertinent to the disposition of the motion, those facts must be set forth in the separate statement. The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion. Each fact must be followed by the evidence that establishes the fact. Citation to the evidence in support of each material fact must include reference to the exhibit, title, page, and line numbers." (*Id.* at subd. (f)(3).)

The document titled "PLAINTIFF'S RESPONSE TO DEFENDANTS' SEPARATE STATEMENT OF UNDISPUTED MATERIAL FACTS IN SUPPORT OF MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION" (Responsive Separate Statement) fails to satisfy the requirements of the Rules of Court discussed above. *Each* of the purported Additional Material Facts (AMF) set forth therein consists of multiple statements of fact; many consist of an entire paragraph of narrative. The right column of each AMF contains *multiple* citations to evidence, undifferentiated as to which statement(s) of fact in the left column that evidence supports. The AMFs are not organized by issue or cause of action.

Moreover, in reviewing a few of the AMFs, the Court finds that the Responsive Separate Statement is riddled with inaccuracies and errors. Much of the evidence cited does not, in fact, bear any relevance to any of the statements the citation corresponds to. (See, *e.g.*, AMF No. 1, "Allen Dep. Ex. 2 . . . Sonesouphab Dep. Vol. II 15:23-19:09; Plaintiff Dep. 99:5-15.) There are AMFs that are unsupported by any of the cited evidence. (See, *e.g.*, AMF No. 11.) The Responsive Separate Statement also cites to evidence that does not appear to have been presented. (See, *e.g.*, AMF No. 11, citing Plaintiff Dep. pp. 186 and 236.)

In addition, Plaintiff's decision to cite to evidence by document name and page number, rather than by directing the Court to the Part and page number of the Declaration of Brooke C. Bellah in which the evidence is submitted, creates significant unnecessary work for the Court in attempting to locate the cited evidence among the over 600 pages of evidence.² This problem is exacerbated by Plaintiff's failure to index the electronic (pdf) filings, and decision to combine multiple documents into single Exhibits. (See, *e.g.*, Declaration of Brooke C. Bellah at Exh. E.)

Taken together, the form of the evidence presented and the significant shortcomings of the Responsive Separate Statement make it impossible for the Court to adequately assess Plaintiff's evidentiary showing in opposition to the motion.

² Plaintiff's evidence is submitted in the form of a three-part Declaration of Brooke C. Bellah with Part 1 consisting of some 172 pages, Part 2 consisting of some 347 pages, and Part 3 consisting of some 104 pages.

In this context, the Court notes the holding in *Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal.App.4th 1197 (*Parkview Villas*). “[I]n the absence of extraordinary circumstances . . . a trial court faced with an opposing party’s defective separate statement plainly indicating which proposed material facts are disputed and including at least general references to the evidence supporting its position does not have the discretion to enter a judgment against that party solely as a result of that party’s failure to explain the nature of the dispute and to provide sufficiently specific citations to the evidence supporting its position.” (*Id.* at 1214-1215.) Plaintiff’s separate statement sufficiently indicates which proposed material facts are disputed. It also includes “general references to the evidence [purportedly] supporting [Plaintiff’s] position.” (*Ibid.*)

In light of the *Parkview Villas* holding and in an abundance of respect for the general policy that the Court seek to avoid granting a motion for summary judgment on a curable procedural defect, the Court feels compelled to grant Plaintiff leave to attempt to cure the deficiencies in the separate statement’s citation to evidence on file with the Court. However, the leave granted hereby is strictly limited as follows.

Plaintiff may, no later than October 2, 2026, file and serve a revised opposition separate statement (ROSS). Plaintiff is *not* granted leave to, and shall not, file any additional evidence of any kind. This prohibition includes evidence intended to authenticate or provide a foundation for evidence previously submitted.

The ROSS shall include *only* material facts that Plaintiff contends are relevant to her burden in the third stage of the *McDonnell Douglas* test as it applies to Plaintiff’s discrimination and retaliation claims. (See *McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792 [93 S. Ct. 1817, 36 L. Ed. 2d 668]; see also *Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 354-355.) To this end, the Court notes that, “to avoid summary judgment, an employee claiming discrimination must offer substantial evidence that the employer’s stated nondiscriminatory [and/or nonretaliatory] reason for the adverse action was untrue or pretextual, or evidence the employer acted with a discriminatory [and/or retaliatory] animus, or a combination of the two, such that a reasonable trier of fact could conclude the employer engaged in intentional discrimination [and/or retaliation].” (See *Horn v. Cushman & Wakefield Western* (1999) 72 Cal.App.4th 798, 806 807.)

Each additional material fact in the ROSS shall be sequentially numbered and set forth in its own row. Put differently, no numbered AMF shall consist of more than a single material fact. Plaintiff shall ensure that all cited evidence actually supports the AMF it is cited in support of. The ROSS shall also comply with the formatting requirements of Rules of Court, rule 3.1350, subdivisions (f) and (h). Finally, all citations to evidence set forth in the ROSS must include reference to the part of the Declaration of Brooke C. Bellah they are set forth in, and the pdf page number of that part, in addition to the document title, page, and line numbers. (See *id.* at subds. (f)(2) and (3).)